

**District- Dhaka**

**In the Supreme Court of Bangladesh  
High Court Division  
(Civil Revisional Jurisdiction)**

Present:

Mr Justice Md Atoar Rahman

**Civil Revision No. 2547 of 2016**

Dinesh Chandra Shaha @ Das and others

... petitioners-appellants-petitioner

- versus-

Sunil Chandra Shaha (Das) and others

...opposite parties-respondents-opposite parties

Mr Tapash Kumar Biswas, Advocate

...for the petitioners-appellants-petitioners

Mr Tapos Bandhu Das, Advocate with

Mr Snehardi Chakravarty, Advocate

... for the opposite parties-respondents-opposite parties

**Heard on: 28.11.2023 & 05.12.2023**

**Judgment on: 11.12.2023**

This Rule was issued on an application under section 115(1) of the Code of Civil Procedure, 1908 calling upon the opposite parties to show cause as to why the judgment and order dated 20.04.2016 passed by the learned District Judge, Dhaka in Miscellaneous Appeal No 185 of 2013 affirming the judgment and order dated 29.07.2013 passed by the learned Joint District Judge, 1<sup>st</sup> Court Dhaka in Miscellaneous Case No 43 of 2012 arising out of Title Suit No 91 of 1926 dismissing the miscellaneous case should not be set aside and/or passed such other or further orders as to this court may seem fit and proper.

During issuance of the Rule an order was passed staying operation of the impugned judgment and order.

The petitioners filed the Miscellaneous Case No 43 of 2012 under Order IX rule 13 of the Code of Civil Procedure for setting aside the preliminary decree dated 28.06.1927 and final decree dated 14.09.2011 passed by the learned Joint District Judge, 1<sup>st</sup> Court, Dhaka in the Title Suit No 91 of 1926 alleging *inter-alia* that the above preliminary decree was shown to have been made on compromise, but the same was in fact a fraudulent one; that the signatures of some defendants were forged and no summons was served upon any of them; that thereafter the final decree was shown that the defendants No 1 and 2 contested the above proceedings, but in fact they did not contest which was also shown by forgery and deceitful means.

The opposite-parties entered appearance in the miscellaneous case and contest by filing written objection denying all the material allegations alleged in the application.

Learned Joint District Judge, 1<sup>st</sup> Court, Dhaka was pleased to dismiss the miscellaneous case summarily holding that the same is hopelessly barred by limitation. Against which the petitioners preferred an appeal being Miscellaneous Appeal No 185 of 2013 in the Court of District Judge, Dhaka which was ultimately heard by the learned District Judge who was pleased to dismiss the miscellaneous appeal by his judgment and order dated 20.04.2016 holding that neither the preliminary decree nor the final decree

was passed ex-parte and, as such, the miscellaneous case under Order IX rule 13 was not maintainable.

Being aggrieved and dissatisfied with the above judgment and order the petitioners-appellants moved this court with an application under section 115(1) of the Code of Civil Procedure and obtained the present Rule and the order of stay.

Mr. Tapash Kumar Biswas, the learned Advocate appearing on behalf of the petitioners has submitted that both the courts below were thoroughly misconceived in respect of scope and nature of the case committing an error in the important question of law resulting in an erroneous decision occasioning failure of justice which is not maintainable in law.

Mr. Tapos Bandhu Das, the learned Advocate appearing on behalf of the opposite parties has submitted that learned District Judge correctly and perfectly disallowed the miscellaneous appeal holding that since neither of the decrees was passed ex-parte, the miscellaneous case under Order IX rule 13 is not maintainable and, as such, the present Rule does not have any substance and accordingly the same is liable to be discharged.

I have heard the submissions placed by the learned Advocates and perused the record along with the relevant papers.

In the application filed under Order IX rule 13 of the Code of Civil Procedure it has clearly been stated that both the preliminary decree and final decree were obtained by practicing fraud and showing that the

preliminary decree was passed on the basis of solenama and the final decree was passed showing presence of the defendants. As per the statement of the above application neither the preliminary decree, nor the final decree was passed ex-parte against these petitioners or their predecessors. Rules 13 to 15 under Order IX of the Code of Civil Procedure have been shown under heading of “*Setting aside Decrees Ex Parte*”. For better appreciation of the matter rule 13 of Order IX is quoted bellow:

*“Setting aside Decrees Ex Parte*

*13. In any case in which a decree is passed ex party against a defendant, he may apply to the Court by which the decree was passed for an order to set it aside; and if he satisfies the Court that the summons was not duly served, or that he was prevented by any sufficient cause from appearing when the suit was called on for hearing, the Court shall make an order setting aside the decree as against him upon such terms as to cost, payment into Court or otherwise as it thinks fit, and shall appoint a day for proceeding with the suit:*

*Provided that where the decree is of such a nature that it cannot be set aside as against such defendant only it may be set aside as against all or any of the other defendants also.”*

From the above quoted provisions of the rule 13 it is crystal clear that this rule is applicable only for setting aside an ex-party decree. But in

the present case it has already been seen that neither the preliminary decree, nor the final decree in question was passed ex-parte against these petitioners or their predecessors and, as such, the miscellaneous case was not maintainable.

Although the learned Joint District Judge dismissed the miscellaneous case summarily on the ground of limitation by his judgment and order dated 29.07.2013 which was not proper ground for dismissing the miscellaneous case summarily but the ultimate decision arrived at by him that miscellaneous case was liable to be summarily dismissed is found to be valid and lawful and similarly, the learned District Judge rightly and correctly dismissed the miscellaneous appeal holding that since the Title Suit No 91 of 1926 was not decreed ex-parte, for setting aside the same, a case under Order IX rule 13 of the Code of Civil Procedure was not tenable in law.

In view of the foregoing discussions, I do not find any substance in the Rule and, as such, the same is liable to be discharged.

Resultantly, the Rule is discharged without any order as to cost.

The impugned judgment and order of the lower appellate court is hereby affirmed.

Let the lower courts' records along with a copy of this judgment be transmitted at once.